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Ship-to Address

SUZHOU SUDELAN RAILWAY PARTS CO.,LTD.

Ms. Lu Jianlan

NO.9 DONGHUAN RD.,FUQIAO TOWN,TAICANG CITY

JIANGSU PROVINCE,P. R.

, 215434

China

Your reference	Faltantes Monterrey
Supplier No.	P10119

Currency USD

Line No.	Part Number	Description	Lead time *	Qty	Unit Price	Net amount
10	V02.00019.00	TORNILLO DE GANCHO M22x74(46) Y ANTIGIRO COMPLETO CAL. 8.8, A4G Plan No. : V02.00019.00 C	25/10/23	1.000 UD	1,05	1.050,00
20	V02.00002.00	TUERCA M22 HEX39x22, CAL.5 TRATAMIENTO BICROMATADO (A9G) stk INFORMATION: The supplier will be evaluated according to the methodology established in the integrated management system, according to price, delivery time and service criteria, being informed in case of a negative result ----- Certificate 3.1 required	25/10/23	1.000 UD	1,05	1.050,00

Packing :		Total Excl. VAT (USD) :	2.100,00
INCOTERM :		Discount granted :	
Payment Terms :	Transferencia Vto. Extranjero - 45 días	Discounted total :	2.100,00
Due Date :			

Important: This purchase order shall be processed in accordance with general buying terms.

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Purchase Terms and Conditions

1- GENERAL CLAUSE

Unless otherwise agreed between the Parties, only the special terms and conditions, as set out in the purchase orders, and these General Terms and Conditions of Purchase of the Purchaser (defined as any affiliated undertaking of DELACHAUX Group) shall be deemed to be in force between the parties, and shall supersede such others as may have been agreed to in any other document exchanged before or after the purchase order. The supplier shall be deemed to have fully accepted these terms and conditions merely by placing the order.

2- ACKNOWLEDGEMENT OF THE ORDER

The supplier shall acknowledge any order by sending an order confirmation addressed to the Purchaser's purchasing department that issued the order within eight days of the supplier receiving the order. If the supplier has not received an express order confirmation within this eight-day period, the supplier shall be deemed to have definitively accepted the order. Any reservations expressed by the supplier must be expressly accepted by the Purchaser for that specific order so that they are deemed to have been accepted by the parties.

3- ORDERS – DELIVERY TIME

The contract product delivery date is shown in the order: it is the date by which the supplier undertakes to have that product (in suitable quantity and quality) ready for the Purchaser at the address specified in the order. Any delay due to a force majeure event, as this term is defined in the case law of the Supreme Court, must be notified to the Purchaser in writing forthwith upon the occurrence of that event. The Purchaser reserves the right to modify the original quantities and delivery dates unless the supplier expressly objects to this within eight days of the request for modification. Any deliveries made before the date specified in the Purchaser's order will only be accepted with the Purchaser's prior consent.

4- QUALITY-PRE-SHIPMENT PRODUCT INSPECTIONS

The supplier is responsible for the quality of the products and services supplied. The supplier undertakes to supply products and services that meet the specifications defined and accepted by the Parties, as well as the quality requirements for the supplier, if those requirements have been provided to the supplier by the Purchaser. No products will be shipped without the supplier having first checked the product for conformity with the specifications listed in the Purchaser's order.

5- DELIVERY – SHIPMENT – CARRIAGE

Unless otherwise agreed in writing by the supplier and the Purchaser, the products shall be considered delivered at the Purchaser's premises. Any shipment made to the Purchaser shall have a supplier delivery note containing all the information required to identify the packages (including order reference, description, quantity and references of the goods, shipment method, carrier, and delivery location). This delivery note must accompany the package. The delivery note shall be deemed to have been validly issued and may be required of the Purchaser if it carries the seal of the issuer of the purchase order and the signature of a person duly authorised to sign that purchase order; the list of these signatories may be requested from the Purchaser.

However, because quantity and quality controls are carried out after delivery, the supplier shall not interpret any signature or seal stamped as an "unreserved" acceptance of the delivery.

Any shipment not accompanied by a delivery note or which is found, post inspection, not to conform to the specifications (in terms of quantity and quality) of the Purchaser's order may, in the Purchaser's discretion, be rejected or returned at the supplier's risk and expense, and the Purchaser shall not be responsible for any shortages or advances.

If delivery terms are not included in any list of terms and conditions in the order, the supplier shall be responsible for delivering and insuring the products up to the Purchaser's specified location.

6- PACKAGING

All packaging shall be carefully prepared and be appropriate for the products and shipment conditions. The supplier shall be liable for any damage due to inadequate packaging. If the products are delivered in the Purchaser's own packaging produced by the same, reference to that packaging shall have to be made in a separate advice note.

7- PASSING OF TITLE AND RISK

Title shall pass upon completion of the order, i.e., upon formal delivery of the order. Any retention of title clause, or clause providing for retention of ownership of the products by the supplier until payment of the price in full, may only be enforced by the supplier where that clause is signed by an authorised representative of the Purchaser.

Unless otherwise provided in the order, risk always passes upon delivery of the goods at the location specified therein.

8- PRICE

Unless otherwise expressly provided in the order, the prices specified in the order are firm and final prices, i.e. they may not be adjusted in response to changes in market conditions. They include shipment, the necessary packaging to keep the product in good condition during storage, and suitable packaging for the product to be shipped in accordance with the preceding clauses.

For products purchased ex works, unless otherwise specified in the purchase order, the supplier shall be responsible for packaging and shipment at the Purchaser's expense in the best conditions; the costs borne shall be paid by the supplier and then billed to the Purchaser at cost price.

9- INVOICES

Invoices shall be sent by the supplier after delivery. Two copies are issued of the invoices which must be sent within five days of delivery to the address specified in the order. They must include the following items: "supplier code," "order number," "delivery note," "product reference," and "delivery location."

10- PAYMENT

Unless otherwise provided in the order, no advance shall be paid upon the order being placed and invoices shall be paid by LCR within sixty (60) days of the goods being received. The amount paid includes any penalties for late delivery, calculated as provided for in clause 11. Any disputes by the Purchaser with respect to the price invoiced or the goods delivered may result in a debit note to be deducted from future payments.

11 - DELAYED DELIVERIES - PENALTIES FOR LATE DELIVERY - PENALTY CLAUSE

In case of delayed delivery or non-delivery by the supplier, any delivery made after the date specified in the purchase order, or established by agreement between the Parties, or any other date expressly accepted by the Purchaser, shall trigger the application of a penalty at a rate of 0.3% for every day of delay on the date referred to above, unless the delay is due to a force majeure event beyond the supplier's control. These penalties shall become due simply upon request by the Purchaser. The amount of these penalties shall be deducted from future payments as noted in clause 10. If the delay extends more than 30 days beyond the specified date, the Purchaser reserves the right to cancel the purchase order, without the supplier being entitled to claim any compensation whatsoever.

12 - WARRANTY

Subject to the applicable laws, in particular with respect to latent defects, the supplier shall, at its expense, fully and promptly make good any defects in design, materials, workmanship and assembly during a period of not less than twenty-four (24) months from the date of initial use of the product by the Purchaser, and will remedy any consequences of those defects. Notwithstanding the above, the Purchaser's suppliers shall directly take on the commitments made by that Purchaser to warrant its goods with respect to the Purchaser's clients, subject to the same conditions and periods applied by the Purchaser in its warranties for its own equipment, which conditions the supplier has confirmed it is acquainted with. The orders placed by the Purchaser for the performance of public contracts automatically imply acceptance by the supplier of the warranty terms applied to the Purchaser under those public contracts. If the supplier is unable to properly comply with this clause, the Purchaser reserves the right to have the necessary work done, at the supplier's cost, without prejudice to the termination clause.

13 - INTELLECTUAL PROPERTY AND CONFIDENTIALITY

The supplier undertakes to keep absolutely confidential all technical and business information which it may have access to in connection with the performance of the contract.

Unless otherwise provided in the order, the drawings, plans and models partly or entirely designed by the Purchaser and which the supplier gets to know for the performance of the order, will remain the property of the Purchaser and must be returned to the Purchaser upon delivery for final payment.

Unless otherwise agreed and provided for in the order, all tools, including trademarks and signs, in particular where manufactured under the order, are the Purchaser's property if invoiced. These various designs, models, plans and tools shall be insured by the supplier until delivery.

14 - ETHICS AND COMPLIANCE

The SELLER agrees and undertakes to fully comply with any applicable anticorruption laws. Delachaux Group is proud to have signed the United Nations Global Compact and undertakes to conduct itself ethically. Our Code of Ethics may be browsed at www.delachaux.com.

Personal data: The Seller will comply with all applicable national and EU regulations in force when it collects any personal data in connection with the performance of this agreement.

15- TERMINATION

The Purchaser may terminate the order without prejudice to its other rights and without becoming liable to the supplier: 1) In case of default by the supplier of any of its obligations under the order, if that default is not remedied within fifteen (15) days of formal notice being sent to the supplier by registered letter, return receipt acknowledged, in which case the Purchaser may terminate the order, without any further legal procedures being required, or arrange for the services/products/work to be supplied by a third company at the supplier's cost. 2) Upon the contract being formally terminated after first observing the procedures provided for in paragraph 1) above, if the work/products/services ordered are intended for a sale or a provision as part of a contract between the Purchaser and a client, termination of that contract shall result in the order being automatically

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cancelled, without prior notice or other legal procedures being required, and without any consideration for the supplier beyond the costs borne for the discarded products. 3) If proceedings are commenced for the supplier to be wound up or sold to or taken over by a third party.

16- INSURANCE

The supplier will purchase and maintain insurance cover with a best-in-class insurer for all risks to which it may be exposed or which may arise out of its contractual obligations, including a waiver of any recourse against the Purchaser, its agents and its insurers. The supplier will, upon the Purchaser's request, supply proof that it has taken out and keeps that insurance in place. If the supplier's insurance policies include contractual excesses, they shall be paid by the supplier.

17- EMPLOYMENT LAWS – EMPLOYMENT REGULATIONS – SPECIAL RULES

Employees assigned by the supplier to the supply of the product and/or service shall remain under the supplier's control. The supplier agrees to comply with all its legal obligations under employment laws for the time being in force, including payment of all payroll and other taxes, and shall provide the Purchaser with proof of:

- Professional correspondence showing its name, full address, and registration number at the Companies Register;
- A certificate of third-party liability insurance;
- A statement whereby the supplier certifies that the work will be done by lawfully employed persons.

The supplier must comply with employment regulations and special rules applicable at the location where the product is manufactured and/or the service is performed.

The supplier shall in particular comply with all discretionary requirements to ensure an orderly supply of the service and performance of the order.

18- SUPPLIER CERTIFICATIONS AND INSTRUCTIONS

The supplier represents that it has all the ISO certifications required to properly perform its obligations. The products and/or services shall be delivered with all instructions, recommendations, warnings and other specifications required for a proper use and optimum protection of people and property, even more so if the products contain hazardous substances or require special safety precautions. In particular, the supplier shall provide the Purchaser with all specifications, instructions and warnings required to comply with the applicable health, safety and environmental laws and regulations, and will indemnify the Purchaser in respect of all consequences, complaints and expenses caused by the supplier's breach of this obligation.

19- SUBMISSION TO JURISDICTION–APPLICABLE LAW

Spanish laws shall be the only applicable laws for the resolution any disputes arising in connection with the construction or performance of the Purchaser's orders. The Parties expressly agree that, in the event of litigation, the local Court of the issuer of the purchase order shall have exclusive jurisdiction, whether the dispute arises in Spain or abroad, including in the case of an incidental claim or claim involving multiple defendants.